

ORDER AMENDED UNDER THE SLIP RULE PURSUANT TO THE
DIRECTIONS OF MR JUSTICE MACDONALD ON 3RD JUNE 2024

Case No: BV20D01752



**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

IN THE MATTER OF THE MATRIMONIAL CAUSES ACT 1973

The Marriage of NADIA ZAHMOUL and KARIM NOUREDDINE ZAHMOUL

**BEFORE MR JUSTICE MACDONALD SITTING IN PRIVATE AT THE
ROYAL COURTS OF JUSTICE ON 24 MAY 2024**

UPON hearing Brent Molyneux KC for the applicant and Alexis Campbell KC and Sassa-Ann Amaouche for the respondent.

AND UPON consideration of the documents lodged by the parties and the oral evidence of the parties and the single joint expert, Mr Pinto, at the final hearing between 20 and 28 February 2024, with a reserved judgment handed down on 18 April 2024.

AND UPON the court affording the parties an opportunity to provide any written submissions as to costs and representations with respect to the form of the order by 4pm on 3 May 2024

AND UPON the court having provided an extension of time to 4pm on Tuesday 14 May 2024 to further enable the applicant to provide any submissions as to costs and any representations with respect to the form of the order.

AND UPON the applicant not having submitted written submissions as to costs nor representations in respect of the form of this order and the respondent having submitted written submissions as to costs and representations in respect of the form of the order.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

AND UPON the applicant having lodged, following the conclusion of the final hearing and after the handing down of judgment, an application to enforce maintenance pending suit with respect to payments she asserts were due in April and May 2024.

AND UPON the court, after further consideration, being satisfied that it is proportionate to deal with that application on the papers.

AND UPON the court being satisfied, with respect to the application to enforce maintenance pending suit for payments falling due after the conclusion of the final hearing and after the handing down of judgment, the court should make an order providing that any arrears of periodical payments which may be owed to the applicant by the respondent, arising out of any previous interim orders should be remitted.

WARNING: IF YOU DO NOT COMPLY WITH THIS ORDER, YOU MAY BE HELD TO BE IN CONTEMPT OF COURT AND YOU MAY BE SENT TO PRISON, BE FINED, OR HAVE YOUR ASSETS SEIZED.

THE PARTIES

1. The applicant is **NADIA ZAHMOUL**.

The respondent is **KARIM NOUREDDINE ZAHMOUL**.

DEFINITIONS

2. The “children of the family” are:

- a. Jade Mia Zahmoul born on 14 May 2005; and
- b. Lila Mae Zahmoul born on 31 May 2007.

2. The “Frost Street Properties” are 240 Frost Street, Brooklyn, NY 11211, USA, namely:

- a. “1F Frost Street” at Unit 1F 240 Frost Street, Brooklyn, NY 11211;
- b. “2R Frost Street” at Unit 2R 240 Frost Street, Brooklyn, NY 11211;
- c. “3R Frost Street” at Unit 3R 240 Frost Street, Brooklyn NY 11211; and
- d. “4F Frost Street” at Unit 4F 240 Frost Street, Brooklyn, NY 11211.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen’s Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

3. “3100 Arrowhead” is:
3100 Arrowhead Road, Teton Village, 83025 Wyoming, USA
4. “3093 Arrowhead” is:
3093 Arrowhead Road, Teton Village, 83025 Wyoming, USA
5. "The Arrowhead mortgage" means the mortgage secured upon 3100 Arrowhead and 3093 Arrowhead in favour of the Bank of Jackson Hole with the mortgage account number 00000148435 and any mortgage arrears or ancillary costs associated with the said mortgage.
6. “The Arrowhead Companies” means the LLC’s which hold legal title to the 3100 Arrowhead and 3093 Arrowhead for the benefit of the parties, namely:
 - a. 3100AH-A LLC
 - b. 3100AH-B LLC; and
 - c. 3093 AH LLC
7. “The joint bank accounts” means the following accounts, whether held jointly or not, but held directly or indirectly for the parties’ joint benefit, namely:
 - a. the Bank of Jackson Hole account number ending **797;
 - b. the Bank of Jackson Hole account number ending **458;
 - c. the Bank of America account ending **4016; and
 - d. the Bank of America account ending **7342
8. “The pension arrangements” means the following:
 - a. the pension arrangement/plan held by the respondent with Fidelity Rollover IRA Karim N Zahmoul - rollover *IRA* with reference number 233-755819;
 - b. the 401K pension arrangement/plan held by the respondent with Goldman Sachs Group Inc. with reference number 00000975;
 - c. The pension arrangement/plan held by the respondent, formerly with Trireme and RBC Cees Ltd. Which has been transferred to the Praxis Group in Malta with the Trireme Pension Services with reference number Trireme

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen’s Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

Pension SICAV plc re Zahmoul/Karim/851742 and Trireme Pension SICAV plc re Zahmoul/Karim/851639; and

- d. The applicant's Fidelity Rollover IRA pension arrangement with reference number Fidelity rollover IRA Nadia El Fekkak Zahmoul – rollover IRA - Fidelity Management Trust Co – Custodian Account Number: 233-054824

9. The “private equity investments” shall mean the investments in the respondent's name as follows:

a.	Cebaco Fishing shares x 125
b.	Tyfone (Frozen (by the applicant) 21,541 Ser-A preferred 21,541 Ser-A preferred shares in tyfone, 2,129 Preferred shares in iCashe, 4,107 Preferred shares in OneIDLab via Auspinen LLC
c.	Alcentra shares (European private debt fund)
d.	Blackstone Tactical Opportunities Fund-H (Private Equity)
e.	Barclays execution only accounts alongside Alcentra / B'stone
f.	54 Capital - Hydra Group Limited
g.	54 Capital –Aquasafe (Ethiopian water company)
h.	The Syndicate - Jason Calacanis - Launch Fund 3
i.	Artex AG (Lichenstein company - 0.17% or 500 A shares)
j.	Etrade Portfolio (Stocks/Bonds)
k.	Saxo Markets (Portfolio) - GBP, Euro and USD accounts
l.	Cornish Lithium (EIS - 276,665 shares)
m.	Mint Green
n.	PennMutual (Whole life) **8630
o.	Callin (paid back into \$2,179 paid back into Citibank account on 12 April 2024 of which the respondent owes the applicant 50%, namely \$1,089.5

10. The “crypto currencies” shall mean the respondent's cryptocurrency holdings with an approximate value as at 3 May 2024:

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- a. Coinbase and Coinbase Pro holding;

Crypto Asset	Balance	Approx. Value	Applicant's Share
USDT	1,702.184951	c. €1592	851.09248
BTC (Bitcoin)	0.00467318	c. €274.97	0.00234
SOL (Solana)	0.04087909	c. €5.22-	0.02044

- b. Helium Coin Investment; H Shares of Helium coin:

HNT 15,853.14 / 3 = HNT 5,284.38 – c. \$21,691 @\$4.01/HNT

Crypto Asset	Total Balance	H's Share	Approx. Value	Applicant's Share
HNT (Helium)	15,853.14	5,284.38	c. \$21,691	2,642.19

- c. Binance account holdings:

Crypto Asset	Balance	Approx. Value	Applicant's Share
SOL (Solana)	142.335	c.\$19,357.56	71.17
ETH (Ethereum)	1.78579496	c.\$5,562.25	0.893
LRC (Loopring)	19,980.00	c.\$5,040.95	9,990
USDT (USDT)	2,539.663818	c.\$2,539.66	1,270
RUNE (Thorchain)	393.81645965	c.\$1,959.24	197
XTZ (Tezos)	999.67982456	c.\$992.68	500
ALGO (Algorand)	1,955.98154673	c.\$377.50	978
IOTA(Miota)	1,345.653	c. \$306.41	673
AVAX (Avalanche)	3.42	c. \$115.84	1.71
XEC (ecash)	2,000,000.00	c. \$101.12	1,000,000
EUR (Euro)	44.85	c. \$50	22.43

And

- d. Chia Coin holdings are held via a 20.89% ownership of EMVirya Trading Ltd (63,500 shares out of 304,300 shares) and consists:

Cash Balances @ Revolut of £42,296.36 so 10.45% is £4,420

Crypto Asset	Balance	Approx. Value	Applicant's Share (10.45%)
XCH - Chia	324.025429061055	c. \$9,720	3,386.1
<u>GATE.IO</u>			

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

SOL (Solana)	60.40894	c. \$ 8,424.63	6.32
AR (Arweave)	149.7	c. \$4,802.97	15.65
FMT (Fantom)	1715.225201	c. \$1,196.19	179.25
USDT (USDT)	2.17	c. \$2.17	0.23

11. The “respondent’s watches and jewellery” shall mean:
 - a. Patek Philippe Aquanaut 5167 A (2012) watch
 - b. Rolex Explorer II (1998) watch
 - c. Rolex GMT II New Model with Ceramic Bezel (2012) watch
 - d. Rolex Sea Dweller DeepSea (2012) watch
 - e. Rolex Daytona (2005) watch
 - f. Hublot St Barths Special Edition (2006) watch
 - g. Bulgari Chronograph (1996) watch
 - h. Ebel Wave (1984) watch
 - i. Piaget White Gold (1961) watch
 - j. Breitling 1997 Breitling Chrono Cockpit chronograph
 - k. The respondent's mother's rose gold southern cross pendant

12. “The delivery of documents” shall be effected by one party emailing to the other any documents and/or forms as follows:
 - a. Delivery to the applicant shall be to nadia@rosekross.com
 - b. Delivery to the respondent shall be to karim@zahmoul.net

RECITALS

Recitals as to costs incurred

13. It is recorded that the applicant has filed with the court and served on the respondent a costs estimate in Form H stating that the applicant has incurred costs of £1,945,092.17 excluding all her third-party costs.

14. It is recorded that the respondent has filed with the court and served on the applicant a costs estimate in Form H stating that the respondent (a) has incurred costs of £1,000,018 including all third-party costs.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen’s Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

Introductory recital

15. The terms set out in this order are in full and final satisfaction of:
- a. All claims for income;
 - b. All claims for capital, that is payments of lump sums, transfers of property and variations of settlements;
 - c. All claims in respect of each other's pensions;
 - d. All claims in respect of the contents of the Frost Street Properties, 3100 Arrowhead and 3093 Arrowhead, and personal belongings;
 - e. All claims against each other's estate on death; and
 - f. All other claims of any nature which one may have against the other howsoever arising either in England and Wales or in any other jurisdiction.

Declarations

16. Neither of the parties shall have any legal or equitable interest in the property or assets owned by the other, and neither of them has any liability for the debts of the other, except as provided for in this order.
17. Neither of the parties shall institute proceedings against the other under the Married Women's Property Act 1882 or the Law of Property Act 1925 or the Trusts of Land and Appointment of Trustees Act 1996.
18. The contents of the Frost Street Properties, 3100 Arrowhead and 3093 Arrowhead, shall be divided between the parties, by list, with each party taking alternate choices.
19. The applicant shall by 4pm on 26 May 2024 arrange for the delivery to or collection by the respondent of the following chattels, which the applicant must keep in good order pending return:
- a. All the respondent's personal effects;
 - b. 2005 Chateaux Giscours case of wine;
 - c. Acoustic guitar; and

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- d. Savoir bed.
 - e. Hublot St Barths Special Edition (2006) watch
 - f. Ebel Wave (1984) watch
 - g. Piaget White Gold (1961) watch
 - h. The respondent's mother's rose gold southern cross pendant
20. Permission to the respondent to produce a redacted copy of this order to the company holding the respondent's watches and jewellery.

IT IS ORDERED WITH EFFECT FROM DECREE ABSOLUTE / FINAL DIVORCE ORDER THAT:

Transfers of real property

21. The applicant shall by 4pm on 26 May 2024 transfer to the respondent all her legal estate and beneficial interest in the 3100 Arrowhead, subject to the Arrowhead mortgages secured against the property being re-arranged or replaced pursuant to paragraph 27(a)(i) and (b) below.
22. The respondent shall by 4pm on 26 May 2024 transfer to the applicant all his legal estate and beneficial interest in the 3093 Arrowhead, subject to the Arrowhead mortgages secured against the property being re-arranged or replaced pursuant to paragraph 27(a)(ii) and (b) below.
23. The applicant shall by 4pm on 26 May 2024 transfer to the respondent all her legal estate and beneficial interest in 1F Frost Street and 4F Frost Street.
24. The respondent shall by 4pm on 26 May 2024 transfer to the applicant all his legal estate and beneficial interest in 2R Frost Street and 3R Frost Street.
25. The costs of the transfer pursuant to paragraphs 21 – 24 above shall be borne equally between the parties.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

26. The parties shall be solely responsible for any tax liabilities associated with, and arising from the transfer of, the property into their respective names pursuant to paragraphs 21 – 24 above.

27. To give effect to the transfers pursuant to paragraphs 21 - 24 above, the following provisions shall apply:

a. The respondent shall arrange for the Arrowhead mortgage to be divided between the parties as follows:

- (i) 70% as the respondent's liability; and
- (ii) 30% as the applicant's responsibility.



b. If it is not possible to re-arrange the said mortgage with the Bank of Jackson Hole, the parties shall arrange for alternate lenders to replace the West Arrowhead mortgage in the proportions provided at paragraph ~~24~~27(a) above.



c. The costs of any mortgage rearrangement shall be shared between the parties equally.

d. The parties shall cooperate with each other to give effect to the mortgage re-arrangement and promptly respond to the delivery of documents within 48 hours of receipt.

e. The parties shall cooperate with each other to divide or dissolve the Arrowhead Companies to give effect to the transfers at paragraphs 21 and 22 above.

f. The parties shall cooperate with each other to ensure all legal title and any liabilities associated with the transfers at paragraphs 21 - 24 above are divided between them in accordance with this order.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- g. In default of prompt cooperation as directed pursuant to paragraph 27(d) – (f) above, documents which require the other party’s signature to give effect to paragraphs 21 - 24 above, the non-defaulting party may apply on paper to the Family Court sitting at the Financial Remedy Court in the Central Family Court for a District Judge to sign the relevant document pursuant to section 39 of the Senior Courts Act 1984, together with a brief explanation of the default, a copy of this order and the judgment of Mr Justice MacDonald dated 18 April 2024.

Transfers of other property

28. The respondent shall transfer to the applicant or show that he has taken all the steps necessary to transfer to the Applicant by 4pm on 26 May 2024 the following:
- a. 50% of the balance standing in the joint accounts, save insofar as they may be frozen, whereupon the frozen funds, if any, shall be shared when the Bank of Jackson Hole unfreezes the account;
 - b. 50% of the private equity investments in specie, where possible; and
 - c. 50% of the Crypto currencies in specie.
29. In respect of paragraph 28(c) above, the applicant shall by 4pm on 15 May 2024 provide to the respondent the crypto wallet addresses required for the respondent to be able to transfer half the balances of his crypto holdings in kind, as follows:
- a. The wallet addresses required for the Coinbase account balances are:
 - (i) USDT;
 - (ii) BTC; and
 - (iii) SOL;
 - b. The wallets required for the Binance balances are:
 - (i) SOL;

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen’s Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- (ii) ETH;
- (iii) LRC;
- (iv) USDT;
- (v) RUNE;
- (vi) XTZ;
- (vii) ALGO;
- (viii) IOTA;
- (ix) AVAX; and
- (x) XEC;

c. The wallet address required with the 50% of the Helium Balances is HNT;

d. The wallet address required with the 10.42% of the Chia Venture share are:

- (i) XCH;
- (ii) SOL;
- (iii) AR;
- (iv) FMT;
- (v) USDT; as well as
- (vi) Bank details for transfer of GBP.

30. Should the applicant fail to provide the information required in paragraph 29 above, by 4pm on 20 May 2024, the respondent will transfer the USD amount equivalent to the amount of crypto currency to the applicant's Wells Fargo bank account.

31. The applicant shall acquire the transfers at paragraph 28 (b) and (c) above with the associated tax liabilities, save that if the transfers trigger a tax liability upon the respondent, the transfers to the applicant at paragraph 28 (b) and (c) above shall be in the amount which equates to the net value after notional deduction of tax which will accrue to the respondent upon the transfer.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

32. The applicant shall transfer to the respondent by 4pm on 6 May 2024 the pawn ticket associated with the respondent's watches and jewellery and cooperate with the respondent in ensuring he is able to reclaim the same.

Order for sale

33. In default of the parties being able to transfer any of the properties as provided for at paragraphs 21 - 24 above, that property shall be sold forthwith on the open market for sale and the following conditions will apply:

- a. 3100 Arrowhead and/or 3093 Arrowhead shall be placed on the open market for sale immediately at the price listed herein, which is the price provided for in the judgment of Mr Justice MacDonald dated 18 April 2024 less \$500,000, which reflects the price achieved on the last sale of a neighbouring property, or at such other price as may be agreed between the parties and is recommended in writing by the estate agent instructed to sell the property:
 - (i) 3100 Arrowhead at \$6,920,000; and
 - (ii) 3093 Arrowhead at \$6,890,000.
- b. The Frost Street Properties shall be placed on the open market for sale immediately at the price listed herein, which is the price provided for in the judgment of Mr Justice MacDonald dated 18 April 2024, or at such other price as may be agreed between the parties and is recommended in writing by the estate agent instructed to sell the property:
 - (i) 1F Frost Street at \$1,100,000;
 - (ii) 2R Frost Street at \$775,000;
 - (iii) 3R Frost Street at \$785,000; and
 - (iv) 4F Frost Street at 767,500
- c. the respondent shall have conduct of the sales;

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- d. the respondent shall instruct appropriate agents and conveyancers to give effect to the order for sale;
- e. the proceeds of sale shall be applied as follows:
 - (i) in respect of 3100 Arrowhead and/or 3093 Arrowhead, to discharge the West Arrowhead mortgage apportioned to it pursuant to paragraph 27 above;
 - (ii) in payment of the solicitors' conveyancing costs and disbursements in connection with the sale;
 - (iii) in payment of the estate agents' charges in connection with the sale;
 - (iv) in payment of any tax immediately payable upon the sale, but excluding either party's liability for Capital Gains Tax;
 - (v) in payment of the balance to the party who was to retain the legal and beneficial interest pursuant to paragraphs 21- 24 above, pregnant with Capital Gains Tax.

Periodical Payments

34. Any arrears of periodical payments which may be owed to the applicant by the respondent, arising out of any previous interim orders are hereby remitted.

Pension sharing order

35. There shall be provision by way of pension sharing orders in favour of the applicant so as to provide her with 50% of the combined CETV's/values of the funds listed at (a) to (c) herein from the funds listed at (a) and (d) herein, namely:
- a. the Fidelity Brokerage Service LLC;
 - b. the Goldman Sachs Group Inc; and
 - c. the Fidelity 401K
 - d. the respondent's share of the Trireme Pension fund as defined in paragraph 8 (c) above, after the deductions made pursuant to paragraph 36 (a) to (d) below.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

The court records that whilst the said pensions are not susceptible to formal English pension sharing orders, the respondent shall transfer the funds to the applicant give effect to this order in the US. This shall be achieved by transferring to the applicant 100% of the fund defined at paragraph 8 (a) and 1% of the fund defined at paragraph 8 (c) above.

36. There shall be provision by way of pension sharing orders in respect of the pension arrangement/plan held by the respondent, formerly with RBC Cees Ltd, which has been transferred to Malta with the Trireme Pension Services as follows:

- a. £700,000 to be held by the respondent as an education fund pursuant to paragraph 38 below;
- b. £345,750 to be drawn and held by the respondent until 31 December 2026 in order to meet the potential tax liability arising from the disposal of his Coinbase shares to the relevant tax authorities in satisfaction of the liability;
- c. £233,848 to be drawn by the respondent and paid to the relevant tax authorities in satisfaction of the tax liability should the respondent be liable to such taxes arising from the withdrawal of pension fund to meet the payments pursuant to (a) and (b) herein and paragraph (d) below; and
- d. In payment of 50% of the balance to the applicant. This shall be achieved by the respondent transferring to the applicant 22.64% of the fund defined at paragraph 8 (c) above.

37. The cost of the pension sharing shall be borne by the parties equally.

38. The funds drawn at paragraph 36 (a) above shall be deposited in an account for the payment of the children's tertiary education expenses. The respondent shall have sole conduct of the account but shall provide the applicant with access to view the account and receive statements. The respondent shall discharge the education bills submitted to him by or on behalf of the children of the family for

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

their respective tertiary education expenses. In the event of any surplus being left in the fund, after the completion of the children's tertiary education, the balance shall be divided equally between the parties and the account closed. If the account has insufficient funds to discharge the liability, the parties shall meet the deficit equally.

39. The funds drawn at paragraph 36 (b) and (c) above shall be retained by the respondent in escrow accounts pending payment of the tax and upon the respondent providing the applicant with documentary evidence of the tax payments due and paid, the balance, if any, shall be divided equally between the parties and the account closed. If the account has insufficient funds to discharge the liability, the parties shall meet the deficit equally.
40. In the event that the applicant predeceases the respondent after this order has taken effect but before its implementation the respondent shall in order to prevent a loss of pension rights to the family overall have permission to apply to appeal out of time against the order under the Matrimonial Causes Act 1973, s 40A or s 40B (there being no requirement to obtain permission to apply to set aside an order under FPR 2010 r.9.9A).
41. Neither party shall apply for decree absolute/ the final divorce until 28 days after the making of the pension sharing orders at paragraphs 35 and 36 above, but the applicant and/or the respondent will make such application promptly thereafter.
42. Both parties shall do all that is necessary to implement the pension sharing orders promptly, including, but not limited to, the signing and returning of any documents related to the implementation promptly from a written request by any person properly concerned with the implementation process and paying promptly from a proper written request for the share of the fee ordered by the court and required by the pension arrangement to effect implementation.

Clean break: capital and income - Applicant

43. Except as provided for in this order, the applicant's claims for secured periodical payments orders, periodical payments orders, lump sum orders, property adjustment orders, pension sharing orders and pension attachment orders shall be dismissed and she shall not be entitled to make any further application in relation to the marriage for an order under the Matrimonial Causes Act 1973 section 23(1)(a) or (b) and she shall not be entitled on the respondent's death to apply for an order under the Inheritance (Provision for Family and Dependants) Act 1975, section 2.

Clean break: capital and income - Respondent

44. Except as provided for in this order, the respondent's claims for secured periodical payments orders, periodical payments orders, lump sum orders, property adjustment orders, pension sharing orders and pension attachment orders shall be dismissed and he shall not be entitled to make any further application in relation to the marriage for an order under the Matrimonial Causes Act 1973 section 23(1)(a) or (b) and he shall not be entitled on the applicant's death to apply for an order under the Inheritance (Provision for Family and Dependants) Act 1975, section 2.

Liberty to apply

45. The parties shall have liberty to apply to the court concerning the implementation and timing of the terms of this order only.

Costs

46. The applicant shall:
- a. Pay the respondent's costs of the Immerman exercise in the sum of £25,000.
 - b. Pay the respondent's costs of the without notice application for a freezing order in the sum of £30,654.50.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- c. Pay to the respondent a proportion of his costs in the sum of £200,000.

Dated 24 May 2024



hm

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right-hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.